

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/02/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTZWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTZWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00636 CASE NAME: LVNV FUNDING LLC VS. MARK WALKER HEARING IN RE: JOINDER TO MOTION TO TRANSFER AND CONSOLIDATE RELATED ACTIONS FILED BY: MANDARICH LAW GROUP, LLP <u>*TENTATIVE RULING:*</u>

See LINE 2 below.

2. 9:00 AM CASE NUMBER: C23-00636 CASE NAME: LVNV FUNDING LLC VS. MARK WALKER

***HEARING ON MOTION IN RE: TRANSFER AND CONSOLIDATE RELATED ACTIONS**

FILED BY: WALKER, MARK T

TENTATIVE RULING:

Defendant and Cross-Complainant Mark T. Walker (“Defendant”) filed a Motion to Transfer and Consolidate Related Actions on October 17, 2025 (the “Motion to Transfer and Consolidate”). The Motion to Transfer and Consolidate was set for hearing on March 2, 2026. The motion is not opposed.

Background

Plaintiff LVNV Funding LLC (“Plaintiff”) filed the Complaint against Defendant on March 22, 2023. The Complaint pleads causes of action for account stated and open book account for Defendant's alleged breach of a credit card agreement with Plaintiff's assignor, Navy Federal Credit Union ("NFCU"), in the amount of \$26,159.25. A Cross-Complaint was filed by Defendant on May 2, 2023.

Defendant's Motion to Transfer and Consolidate seeks to transfer and consolidate two cases with this pending litigation: (1) *LVNV Funding, LLC v. Derrick, et al.*, Kings County Case No. 23CL0860; and (2) *LVNV Funding, LLC v. Moya, et al.*, San Mateo County Case No. 23-CLJ-02782 (collectively, the “Out of County Cases”).

The Motion to Transfer and Consolidate was joined by Cross-Defendants Mandarich Law Group, LLP, Teona Pipia and Martin Weingarten (the “Joinder”).

It should be note that the Court considered and denied approving a stipulation by the parties to consolidate the following cases:

- a. LVNV Funding, LLC v. Walker, *et al.*, Contra Costa Case No. C23-00636;
- b. LVNV Funding, LLC v. Derrick, *et al.*, Kings Case No. 23CL0860; and
- c. LVNV Funding, LLC v. Moya, *et al.*, San Matco Case No. 23-CLJ-02782.

See Stipulation and Joint Request to Transfer and Consolidate Cases and Order thereon filed August 20, 2025.

The Court GRANTS the request to take judicial notice of certain attached pleadings in this and the Out of County Cases pursuant to the Request for Judicial Notice filed October 17, 2025 (the “RJN”). In all other respects, the RJN is DENIED, including as to the request to take judicial notice of “the entire Court file” in both of the Out of County Cases.

Analysis

Generally, the Superior Court in the county in which the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action, except as otherwise provided by law and subject to the Court's statutory authority to transfer actions. Code Civ. Proc. § 395(a); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 9.5.

Under Code of Civil Procedure section 403, “[a] judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. Code Civ. Proc. § 403.

Defendant seeks an order to transfer venue of the two Out of County Cases to the Contra Costa County Superior Court.

First, Defendant's motion is procedurally defective. Defendant has not shown compliance with Rule 3.500 of the California Rules of Court ("CRC") that requires a meet and confer process involving all parties to all of the affected cases:

A party that intends to file a motion under Code of Civil Procedure section 403 must first make a good-faith effort to obtain agreement of all parties to each case to the proposed transfer and consolidation.

CRC 3.500(b).

The moving party's supporting declaration fails to indicate that such meet and confer has happened with all parties involved in the Out of County Cases. See Declaration of Matthew C. Salmonsens ("Salmonsens Decl."), ¶¶1-9. Although the moving party's brief cites to Paragraph 4 of this declaration in support of the proposition that "all parties have agreed to the transfers and consolidation" (see MPA, p. 5 and fn. 23 thereto), that paragraph says nothing about contacting **all of the other parties in both of the Out of County Cases**. See Salmonsens Decl., ¶4.

Nor has the moving served such parties with this motion or the other courts. Code Civ. Proc. § 403 ("Notice of the motion shall be served on all parties to each action and on each court in which an action is pending.").

Even if not procedurally defective, the Court would deny the motion. It is clear that that the Out of County Cases involve suits on unrelated debts. That similar defenses (or affirmative claims regarding wrongful conduct by a debt collector or its attorneys) may be raised does not persuade that Court that transfer and consolidation is appropriate. If class action status is sought to redress broader allegations of industry wide improper practices, that is another matter and can be considered by the Court in ruling on class certification or related procedures involving the purported representative action.

Disposition

The Court finds and orders as follows:

1. The Motion to Transfer and Consolidate and Joinder are DENIED.
2. The Court shall issue the order.

3. 9:00 AM CASE NUMBER: C23-03252

CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE

HEARING ON SUMMARY MOTION

FILED BY: NIELSON, COURTNEY

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or adjudication in the alternative, filed by plaintiffs Courtney Nielson and Nicholas Bunch. The motion is **DENIED** on both procedural and substantive grounds, as discussed below. Even assuming plaintiffs had met their initial burden to show entitlement to judgment as a matter of law, defendants have shown triable issues of material fact.

I. Background

Plaintiffs filed suit against defendants, DG Design Group Builders, Inc.; Diana George; Donald